

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 898

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO STATE HISTORIC PRESERVATION; AMENDING CHAPTER 8, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-818A, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE STATE HISTORIC PRESERVATION PROGRAM; AMENDING SECTION 67-4112, IDAHO CODE, TO REVISE A DEFINITION; AMENDING SECTION 67-4127, IDAHO CODE, TO REMOVE OBSOLETE LANGUAGE; REPEALING SECTION 67-4127A, IDAHO CODE, RELATED TO THE STATE HISTORIC PRESERVATION OFFICER; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 8, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-818A, Idaho Code, and to read as follows:

67-818A. STATE HISTORIC PRESERVATION PROGRAM. (1) There shall be a state historic preservation officer who shall be appointed by the governor, serve at the pleasure of the governor, and be qualified by reason of education, training, experience, and demonstrated ability to fill the position. The compensation for the state historic preservation officer shall be set by the governor.

(2) The state historic preservation officer may employ staff as necessary for the purpose of administering a state historic preservation program in accordance with the requirements set forth by the national historic preservation act.

(3) The state historic preservation program shall be within the office of species, minerals, and energy coordination. Such office is authorized to and shall administer and enforce the provisions of this section and the national historic preservation act, not to exceed the standards required by federal law.

(4) The state historic preservation officer shall appoint an adequate and qualified state historic preservation review board in accordance with the national historic preservation act.

SECTION 2. That Section 67-4112, Idaho Code, be, and the same is hereby amended to read as follows:

67-4112. DEFINITIONS. As used in this chapter:

(1) "Board" means the board of trustees of the Idaho state historical society.

(2) "Historical record" means any record, artifact, object, historical or archaeological site or structure, document, evidence or public or private writing pursuant to the provisions of title 9, Idaho Code, relevant to the history of the state of Idaho.

(3) "Idaho state historical society" and "society" mean the educational institution pursuant to chapter 41, title 67, Idaho Code. The society includes the Idaho state museum, the Idaho state archives and state records center, ~~the state historic preservation office,~~ and operates in public trust state historic sites, including the old Idaho penitentiary, John and Ann Doney house, the Lorenzo Hill Hatch house, Franklin relic hall, Franklin cooperative mercantile institution, Rock Creek station and Stricker homesite, and Pierce courthouse.

SECTION 3. That Section 67-4127, Idaho Code, be, and the same is hereby amended to read as follows:

67-4127. DIRECTOR OF THE SOCIETY APPOINTED BY BOARD -- POWERS AND DUTIES. A director of the society shall be appointed by the board of trustees, serve at the pleasure of the board, be qualified by reason of his education, training, experience and demonstrated ability to fill such position, and exercise the following powers and duties in addition to all other powers and duties inherent in the position or delegated to him or imposed upon him by the board:

1. To be a nonvoting member of the board of trustees and secretary thereto.

2. To be the administrative officer of the state historical society.

3. To prescribe such rules as may be necessary for the efficient operation of his office.

~~4. To serve as state historic preservation officer if so appointed by the governor pursuant to section 67-4127A, Idaho Code.~~

SECTION 4. That Section 67-4127A, Idaho Code, be, and the same is hereby repealed.

SECTION 5. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.